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File No.: EXP202316044

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on September 14, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against EURODIVISAS, S.A. (hereinafter, the respondent) without receiving the legally established response to their request. Along with their complaint, they submitted, among others:

- A copy of the request for the exercise of the right of access dated August 21, 2023.
- A copy of the response from the respondent dated August 29, 2023, denying the request for the right of access, justified by Article 32.2 of the LPBCFT.

In their complaint, the complainant states that on May 15, 2023, they requested a currency exchange operation (from euros to British pounds, for an approximate amount of one thousand euros) at an office of the respondent located at Madrid airport, which was rejected by said entity.

They add that, in light of the multiple refusals to inform them about the reasons for such denial, on August 21, 2023, they requested access to their data subject to processing from the respondent.

Specifically, they requested:

- A copy of the personal data that is subject to processing by EURODIVISAS, S.A.
- The purposes of the processing, as well as the categories of personal data being processed.
- The recipients or categories of recipients to whom the personal data has been communicated, or will be communicated, including, where applicable, recipients in third countries or international organizations.
- Information on the appropriate safeguards relating to the transfer of data to a third country or to an international organization, where applicable.
- The expected retention period.
- Whether there are automated decisions, including profiling, significant information about the logic applied, as well as the importance and expected consequences of such processing.
- If the personal data has not been obtained directly from A.A.A., the available information about its origin and, specifically, the databases used for the decision made by EURODIVISAS, S.A.

On August 29, 2023, they received a response from the respondent regarding their request for the right of access, confirming receipt of the same on August 23, 2023. In the response, it is indicated:

- That the respondent is an authorized entity registered with the Bank of Spain for the activity of buying and selling foreign currency.
- That, consequently, it has the status of a subject obliged in accordance with the provisions of Article 2.1 i) of Law 10/2010, of April 28, on the prevention of money laundering and the financing of terrorism (hereinafter, LPBCFT).
- That Article 32 of the aforementioned law establishes that the processing of personal data necessary for compliance with the obligations established in its Chapter III is covered by the provisions of Article 8.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights, and Article 6.1.c) of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, not requiring the consent of the data subject both to carry out this and for the data communications provided for by law.
- Regarding the exercised right of access that gives rise to this response, it states that Article 32.2 of the LPBCFT determines that in accordance with Article 23 of the GDPR, obliged subjects are not required to comply with the rights established in Articles 15 to 22 of the GDPR and in the event of exercising the aforementioned rights, it is sufficient for the obliged subject to inform the data subject of the provisions of the cited precept.
- Finally, it concludes that, as an obliged subject of the aforementioned law, and in accordance with

Article 32.2 of the same, "it is not obliged to comply with the exercised right of access," without prejudice to the possibility of requesting the protection of the AEPD.

SECOND: On December 20, 2023, this Agency resolves regarding the complaint filed by the complainant and their unaddressed access request. It concludes by archiving the complaint as follows: "...However, once the reasons presented by the respondent, which are in the file, have been analyzed, it is considered that the rejection of the request made is in accordance with the data protection regulations, without the need to urge the adoption of additional measures as it has complied with the duty to respond provided for in Article 12.4 of the LOPDGDD, therefore, in view of the actions taken, the archiving of the filed complaint is appropriate.

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All of this, without prejudice to any possible actions related to the processing of data referred to in the complaint that this Agency may carry out, applying the investigative and corrective powers it holds. For all the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the complaint.

THIRD: The complainant, in total disagreement with the resolution, submits a request for reconsideration which is resolved on July 15, 2024, in a favorable manner, leading to the current rights procedure with the following arguments:

"In this regard, in the document submitted to the AEPD on September 14, 2023, the AEPD was requested to require the Company to provide information about the personal data processed of the Interested Party from those processing operations that are not subject to the limitation of Article 32.2 of Law 10/2010.

Therefore, it is not appropriate to limit the fundamental right to data protection of A.A.A. for all processing operations carried out by the Company. RATHER, WE ARE ONLY REQUESTING THE INFORMATION THAT HAS BEEN PROVIDED TO THE REGULATOR, NOT THE DATA PROCESSED OF THE INTERESTED PARTY."

FOURTH: In light of the events on July 16, 2024, the original complaint is again communicated to the responding party, along with the request for reconsideration submitted by the complainant and the resolution of said request, so that within fifteen working days they may present any arguments they deem appropriate.

On July 22, 2024, the responding party submits a written statement of arguments, concluding:

"In conclusion,

1. Eurodivisas requested the complainant's identification in compliance with a legal obligation to identify potential clients, established by Article 3 of the LPBC.
2. The only data obtained from the client were the name and surname and passport number.
3. Since the operation was automatically blocked, the complainant never became a client of Eurodivisas and is therefore not in its client database.
4. Given that the alert was triggered, the only processing carried out by Eurodivisas on the obtained data was for the purpose of fulfilling the due diligence obligation of Chapter III of the LPBC and, specifically, for the purposes of the Special Examination provided for in Article 17.
5. In accordance with the provisions of paragraph 2 of Article 32 of the LPBC, Eurodivisas is not authorized to provide the information contained in the Special Examination nor, therefore, to provide details about the specific reasons that led to the blocking of the operation, being limited to informing the complainant of what is stated in the second paragraph of Article 32, paragraph 2 of the LPBC."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address requests for the exercise of the rights of the interested party under this Regulation."

III

Rights of individuals regarding personal data protection

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The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

Article 15 of the GDPR, "Right of access of the data subject," establishes the following:

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed,

in particular recipients in third countries or international organizations;

d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;

e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;

f) the right to lodge a complaint with a supervisory authority;

g) when the personal data have not been obtained from the data subject, any available information as to their source;

h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in those cases, meaningful information about the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

In turn, Article 13 of the LOPDGDD, regarding the Right of Access, establishes the following:

“1. The right of access of the affected party shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679.

When the controller processes a large amount of data concerning the affected party and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the affected party specify the data or processing activities to which the request refers before providing the information.

2. The right of access shall be deemed granted if the data controller provides the affected party with a remote, direct, and secure access system to the personal data that ensures, on a permanent basis, access to all of it. For these purposes, the communication by the controller to the affected party of how they can access that system shall suffice to consider the request for the exercise of the right as addressed.

However, the data subject may request from the controller the information referred to in the aspects provided for in Article 15.1 of Regulation (EU) 2016/679 that is not included in the remote access system.”

In summary, like the rest of the rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been disclosed.

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that the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information on transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data subject to processing shall not adversely affect the rights and freedoms of others.

V

Limitations on the right of access

Article 23 of the GDPR, "Limitations," allows for restrictions on the right of access in the national legislation of Member States, with its literal wording as follows:

“1. The law of the Union or of the Member States applicable to the controller or the processor may limit, through legislative measures, the scope of the obligations and rights established in Articles 12 to 22 and Article 34, as well as in Article 5 to the extent that its provisions correspond to the rights and obligations provided for in Articles 12 to 22, when such limitation essentially respects fundamental rights and freedoms and is a necessary and proportionate measure in a democratic society to safeguard:

- a) the security of the State;
- b) defense;
- c) public security;
- d) the prevention, investigation, detection, or prosecution of criminal offenses or the execution of criminal sanctions, including protection against threats to public security and their prevention;
- e) other important objectives of general public interest of the Union or of a Member State, in particular an important economic or financial interest of the Union or of a Member State, including in the areas of tax, budgetary, and monetary policy, public health, and social security;
- f) the protection of judicial independence and of judicial proceedings;
- g) the prevention, investigation, detection, and prosecution of breaches of ethical standards in regulated professions;
- h) a supervisory, inspection, or regulatory function linked, even occasionally, to the exercise of public authority in the cases referred to in letters a) to e) and g);
- i) the protection of the data subject or of the rights and freedoms of others;
- j) the enforcement of civil claims.

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2. In particular, any legislative measure referred to in paragraph 1 shall contain at least, where applicable, specific provisions relating to:

- a) the purpose of the processing or categories of processing;
- b) the categories of personal data concerned;
- c) the scope of the established limitations;
- d) the safeguards to prevent unlawful or abusive access or transfers;
- e) the determination of the controller or categories of controllers;
- f) the retention periods and applicable safeguards taking into account the nature, scope, and purposes of the processing or categories of processing;
- g) the risks to the rights and freedoms of data subjects; and
- h) the right of data subjects to be informed about the limitation, unless it may be detrimental to the purposes of this.”

In this regard, Guidelines 1/2022, adopted on March 28, 2023, approving the Application Guide for Article 15 of the GDPR, on the Right of Access of the Data Subject, state that “controllers intending to rely on such restrictions must thoroughly check the requirements of national provisions and take note of the specific conditions that may apply.”

The aforementioned Article 23 of the GDPR is therefore developed through specific sectoral regulations, which determine how these limitations apply regarding the exercise of rights, with the controller being required to respond to the request for the right of access in the terms established in the corresponding sectoral regulation, which, in this case, is the LPBCFT.

Article 32 of the LPBCFT, “Protection of Personal Data,” establishes the following in its first and second paragraphs:

“1. The processing of personal data for the fulfillment of the obligations established in Chapter III of this law (“On Information Obligations”) is covered by the provisions of Article 8.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, and in Article 6.1(c) of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016,

not requiring the consent of the data subject.

Consent will also not be necessary for the data communications provided for in the aforementioned chapter and, in particular, for those provided for in Article 24.2, which are also covered by Article 8.1 of Organic Law 3/2018, of December 5.

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2. By virtue of the provisions of Article 24.1, and in accordance with Article 14.5 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the obligation to provide information as stipulated in Article 14 of the aforementioned Regulation shall not apply to the processing of data referred to in the previous section.

Furthermore, in accordance with Article 23 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the rights established in Articles 15 to 22 of the Regulation shall not be applicable in relation to the aforementioned processing. In the event that the data subject exercises the aforementioned rights, the obligated parties shall limit themselves to informing the data subject of the provisions of this article.

The provisions of this section shall also apply to the processing carried out by the Executive Service of the Commission for the fulfillment of the functions granted to it by this law.

In summary, Article 32.2 excludes the exercise of the right of access to personal data processed in accordance with Chapter III of the LPBCFT.

However, the aforementioned restriction shall not apply to personal data processed in accordance with Chapter II of the same.

At this point, it is pertinent to mention the definition provided in Article 4 of the GDPR regarding "personal data," as well as that related to their processing. Article 4.1 establishes that personal data is "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

For its part, paragraph 2 of the same article defines processing as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

Chapter II of the LPBCFT, not subject to the access rights restrictions provided by Article 32 of the same regulation, establishes the obligations related to the identification of natural or legal persons wishing to establish business relationships or engage in any operations under the law. The identification of a person, whether natural or legal, through "authentic documents" as required by the LPBCFT, implies, from the perspective of personal data, a processing of data in the terms provided by Article 4.2 of the GDPR.

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Consequently, in response to a request for the right of access as made by the claiming party, access should be granted regarding those data not subject to the restrictions of Article 32 of the LPBCFT, in addition to including the transcription of the aforementioned Article 32 for all that is included in Chapter III, in the terms required by this law.

VI

Conclusion

In light of the above, the responding party, in its response dated August 29, 2023, has provided an incomplete answer to the request for the right of access made by the claiming party. In it, only Article 32 of the LPBCFT was transcribed, but without mentioning the personal data not subject to the limitation established by it.

Thus, during the processing of this procedure, the responding entity, in response to this Agency on July 22, 2024, asserts that the only data obtained from the client for the purpose of carrying out the identification prescribed by Article 3 of the LPBCFT were the name, surname, and passport number; that the operation was automatically blocked and that, therefore, the claimant never became a client of the responding party nor is found in its database. However, it does not prove to have sent this information to the claiming party as part of the mandatory response to the request for the right of access made, which must cover the data not subject to the limitation of Article 32.2 of the LPBCFT: the confirmation of whether or not their data is being processed, effective access to the same, and access to information about the processing, such as purposes, categories of data and recipients, duration of processing, rights of the data subjects, and adequate safeguards in the case of transfers to third countries.

The aforementioned rules do not allow the request to be overlooked as if it had not been made, leaving it without the response that those responsible must issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response, justified in any case, using any means that justifies the receipt of the response. Under no circumstances can it be accepted that the response to be given may be expressed in the course of a mere administrative procedure, such as the submission of allegations regarding the present procedure, initiated precisely for not properly addressing the request in question.

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Given that only a partial justified response has been sent to the responding party, it is appropriate to partially uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO PARTIALLY UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge EURODIVISAS, S.A. with NIF A37310323, to send, within ten working days following the notification of this resolution, a certification to the claiming party addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to EURODIVISAS, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file

a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
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